

26STLC03935 26STLC03935

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Case Number: 26STLC03935 Hearing Date: September 14, 2026 Dept: 26

TENTATIVE RULING:

Defendant Jay Kim, as Trustee of the Kim Revocable Living Trust dated September 16, 2008, Kim Revocable Living Trust dated September 16, 2008's Demurrer to the Complaint is overruled as to the third cause of action and sustained without leave to amend as to the fourth and fifth causes of action.

Defendant is to file and serve an Answer to the Complaint within 20 days of this ruling.

Analysis:

Plaintiffs Sammy K. Shin and Chung Ok Shin ("Plaintiffs") filed the instant action against Defendant Jay Kim, as Trustee of the Kim Revocable Living Trust dated September 16, 2008, Kim Revocable Living Trust dated September 16, 2008 ("Defendant"), on June 15, 2026. Defendant filed and served the instant Demurrer to the Complaint on July 28, 2026. No opposition to the Demurrer has been filed to date.

Discussion

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41. (Declaration, filed 07/28/26, ¶2.) Defendant demurs to the third, fourth, and fifth causes of action of the Complaint for failure to allege sufficient facts and uncertainty. (Citing Code Civ. Proc., § 430.10, subds. (e), (f).) Special demurrers are not permitted in the Limited Civil Court. (Code Civ. Proc., § 92, subd. (c).) Therefore, the Court will not consider the Demurrer for uncertainty.

The Complaint alleges (1) Negligence; (2) Private Nuisance; (3) Trespass; (4) Property Damage; and (5) Loss of Rental Income, based on the following facts. Plaintiffs purchased the real property located at 4848 Wilshire Blvd. #102 Los Angeles, California ("Unit 102"). (Compl., ¶2.) Defendant owns the unit above Unit 102, located at 4848 Wilshire Blvd. #302, Los Angeles, California ("Unit 302"). (Id. at ¶3.) Defendant owned, controlled, maintained, repaired, occupied, and/or possessed Unit 302 and the plumbing, fixtures, appliances, water lines, and related components located therein. (Id. at ¶4.) Defendant owed a duty to exercise reasonable care in the ownership, maintenance, inspection, repair, and operation of Unit 302 so as not to cause damage to neighboring units. (Id. at ¶5.)

Plaintiffs purchased Unit 102 on or about July 10, 2024 and rented it out. (Id. at ¶7.) In mid-February 2025, Plaintiffs received tenant complaints of water leakage affecting Unit 102. (Id. at ¶8.) Plaintiffs discovered that water had escaped from Unit 302 and infiltrated Unit 102. (Id. at ¶9.) The water intrusion was caused by Defendants' negligent maintenance, repair, inspection,

operation, and/or failure to timely correct a dangerous condition within Unit 302. (Id. at ¶10.) The condition was mainly caused by construction work being done in Unit 302. (Ibid.) Plaintiffs sought a meeting with Defendant and the Homeowner's Association. (Id. at ¶11.) One of the HOA board members tried to visit Unit 302, but Defendant refused them access. (Ibid.) Defendant knew or reasonably should have known about the water leak but failed to take reasonable steps to prevent further damage. (Id. at ¶12.) As a direct result of the water leak, Unit 102 sustained extensive water damage to ceilings, walls, flooring, drywall, cabinetry, and other building components, and substantial mold contamination. (Id. at ¶¶13-14.) Plaintiff had to retain contractors, water mitigation specialists, mold assessors, mold remediation companies, and repair professionals to investigate and remediate the damage. (Id. at ¶15.) Plaintiff lost rental income during the remediation and repair process. (Id. at ¶17.) Plaintiff also incurred mold remediation costs, water mitigation expenses, repair and reconstruction costs, property damage, expert and inspection fees, lost rental income, loss of use damages, prejudgment interest, and other consequential damages. (Id. at ¶18.)

The third cause of action for trespass incorporates by reference the aforementioned allegations and further alleges that "water, moisture, mold spores, and related contaminants originating from Unit 302 physically invaded Plaintiff's property" and that the "unauthorized invasion interfered with Plaintiff's possessory interests" and directly caused Plaintiff to suffer damages. (Id. at ¶¶28-30.) Defendant demurs on the grounds that trespass requires a particular mental state or degree of culpability beyond ordinary negligence, which the Complaint fails to allege. (Citing *Martin Marietta Corp. v. Insurance Co. of North America* (1995) 40 Cal.App.4th 1113, 1132.) The case to which Defendant cites holds that "The essence of the cause of action for trespass is an 'unauthorized entry' onto the land of another." [Citation.] (Citing *Martin Marietta Corp. v. Insurance Co. of North America* (1995) 40 Cal.App.4th 1113, 1132, citing *Cassinis v. Union Oil Co.* (1993) 14 Cal.App.4th 1770, 1778.) The Court of Appeal also held that an insurance policy referring to "wrongful entry" included trespass but was not persuaded by the argument that "wrongful entry" requires "intent to oust the plaintiff from possession." (Id. at 1133.) Beyond this, the case did not set forth what "particular mental state or degree of culpability" is required to allege trespass.

Nor does Defendant's Demurrer analyze any of the allegations in the Complaint to demonstrate that they fail to support the requisite intent. The Complaint alleges that Defendant knew, or should have reasonably known, about the water intrusion. (Compl., ¶12.) Defendant also allegedly refused to give an HOA member access to Unit 302. (Id. at ¶11.) The Demurrer does not explain why these allegations are insufficient. Therefore, Defendant has not demonstrated that Plaintiff's allegations in support of the third cause of action are insufficient to allege trespass. The Demurrer to the third cause of action is overruled.

Defendant also demurs to the fourth and fifth causes of action on the grounds that they merely make claims for particular kinds of damages—property damage and loss of use and loss of rental income—which do not constitute a cause of action. As Defendant points out, these causes of action allege no additional breach or wrongful conduct and simply allege specific types of damages based on previously alleged conduct. (Compl., ¶¶32-38.) This does not constitute a cause of action. (See *People ex rel. Feuer v. Superior Ct. (Cahuenga's the Spot)* (2015) 234 Cal. App. 4th 1360, 1376-77 (defining "cause of action").) The Demurrer to the fourth and fifth causes of action is sustained.

As the pleading party, Plaintiff bears the burden to show that leave to amend should be granted, which the Court must allow where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) Plaintiff filed no opposition to the Demurrer to demonstrate on what basis leave to amend the last two causes of action might be granted. Therefore, leave to amend is denied.

Conclusion

Defendant Jay Kim, as Trustee of the Kim Revocable Living Trust dated September 16, 2008, Kim Revocable Living Trust dated September 16, 2008's Demurrer to the Complaint is overruled as to the third cause of action and sustained without leave to amend as to the fourth and fifth causes of action.

Defendant is to file and serve an Answer to the Complaint within 20 days of this ruling.

Moving Party to give notice.